

1926.95(a)

Application. Protective equipment, including personal protective equipment for eyes, face, head, and extremities, protective clothing, respiratory devices, and protective shields and barriers, shall be provided, used, and maintained in a sanitary and reliable condition wherever it is necessary by reason of hazards of processes or environment, chemical hazards, radiological hazards, or mechanical irritants encountered in a manner capable of causing injury or impairment in the function of any part of the body through absorption, inhalation or physical contact.

1926.95(b)

Employee-owned equipment. Where employees provide their own protective equipment, the employer shall be responsible to assure its adequacy, including proper maintenance, and sanitation of such equipment.

1926.95(c)

Design and selection. Employers must ensure that all personal protective equipment:

1926.95(c)(1)

Is of safe design and construction for the work to be performed; and

1926.95(c)(2)

Is selected to ensure that it properly fits each affected employee.

1926.95(d)

Payment for protective equipment.

1926.95(d)(1)

Except as provided by paragraphs (d)(2) through (d)(6) of this section, the protective equipment, including personal protective equipment (PPE), used to comply with this part, shall be provided by the employer at no cost to employees.

1926.95(d)(2)

The employer is not required to pay for non-specialty safety-toe protective footwear (including steel-toe shoes or steel-toe boots) and non-specialty prescription safety eyewear, provided that the employer permits such items to be worn off the job-site.

1926.95(d)(3)

When the employer provides metatarsal guards and allows the employee, at his or her request, to use shoes or boots with built-in metatarsal protection, the employer is not required to reimburse the employee for the shoes or boots.

1926.95(d)(4)

The employer is not required to pay for:

1926.95(d)(4)(i)

Everyday clothing, such as long-sleeve shirts, long pants, street shoes, and normal work boots; or

1926.95(d)(4)(ii)

Ordinary clothing, skin creams, or other items, used solely for protection from weather, such as winter coats, jackets, gloves, parkas, rubber boots, hats, raincoats, ordinary sunglasses, and sunscreen.

1926.95(d)(5)

The employer must pay for replacement PPE, except when the employee has lost or intentionally damaged the PPE.

1926.95(d)(6)

Where an employee provides adequate protective equipment he or she owns pursuant to paragraph (b) of this section, the employer may allow the employee to use it and is not required to reimburse the employee for that equipment. The employer shall not require an employee to provide or pay for his or her own PPE, unless the PPE is excepted by paragraphs (d)(2) through (d)(5) of this section.

1926.95(d)(7)

This section shall become effective on February 13, 2008. Employers must implement the PPE payment requirements no later than May 15, 2008.

Note to § 1926.95(d): When the provisions of another OSHA standard specify whether or not the employer must pay for specific equipment, the payment provisions of that standard shall prevail.

[58 FR 35152; June 30, 1993; 72 FR 64429, Nov. 15, 2007; 89 FR 100346, Dec. 12, 2024]

Safety-toe footwear for employees shall meet the requirements and specifications in American National Standard for Men's Safety-Toe Footwear, Z41.1-1967.